



2025:AHC:184387-DB

**HIGH COURT OF JUDICATURE AT ALLAHABAD
WRIT - C No. - 33604 of 2025**

Akriti Food Industry Llp (Lpin-Ass-0345)

.....Petitioner(s)

Versus

State Of U.P. And 2 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Bidhan Chandra Rai, Stuti Rai
Counsel for Respondent(s)	:	C.S.C., Mukesh Kumar Singh

Court No. - 40

**HON'BLE SARAL SRIVASTAVA, J.
HON'BLE SUDHANSHU CHAUHAN, J.**

1. Heard learned counsel for the petitioner and learned counsel for the respondents.
2. The petitioner by means of the present writ petition has assailed the order dated 12.08.2025 passed by the respondent no.3 whereby he has decided the representation of the petitioner with regard to incorrect bill given to the petitioner in respect to arrears of bill for the period from June, 2023 to July, 2025 amounting to Rs.22,28,225/-.
3. According to petitioner, if consumer disputes the correctness of any bill, there is a provision contemplated under Clause 5.6(e) of U.P. Electricity Supply Code, 2005 which the authority has to adhere to before adjudicating the issue of correctness of bill.
4. It is submitted by the learned counsel for the petitioner that petitioner has already approached this Court by filing Writ-C No.24727 of 2025 in which this Court remitted the matter to the concerned authority to look into the grievance of the petitioner in accordance with law. It is submitted that once the procedure is contemplated under Clause 5.6(e) of U.P. Electricity Supply Code, 2005, the concerned authority has to follow the said clause while determining the issue of correctness of bill whereas in the instant case, Clause 5.6(e) of U.P. Electricity Supply Code, 2005

has not been adhered to by the respondent-authority while passing the impugned order.

5. The petitioner has placed reliance upon the letter dated 13.08.2025 issued by the Executive Engineer wherein he has stated that check meter be installed parallel to the main meter, and the electricity bill shall be corrected as per the energy consumed in the check meter. In such view of the fact, it is submitted that impugned order cannot be sustained in law.

6. Learned counsel for the respondents would contend that in the instant case, the check meter was installed and no defects were found in the main meter, therefore, there is no illegality in the impugned order. He submits that the Executive Engineer has written a letter dated 13.08.2025, and it is not an order passed by the Executive Engineer, and learned counsel for the petitioner is wrongly referring it to be an order passed by the Executive Engineer.

7. Be that as it may, it is not disputed by the learned counsel for the respondents that a procedure has been contemplated under Clause 5.6(e) of U.P. Electricity Supply Code, 2005, according to which, in case of dispute of electricity bill, check meter is to be installed parallel to the main meter, and the electricity bill shall be made as per the energy consumption reflected in the check meter.

8. In the instant case, the check meter has been installed on 08.08.2025, and the impugned order has been passed on 12.08.2025. According to Clause 5.6(e) of U.P. Electricity Supply Code, 2005, the reading with respect to consumption of energy in check meter is to be recorded between 7-15 days after the date of its installation, and in the instant case, the aforesaid period has not expired and impugned order has been passed. In such view of the fact, we find that the impugned order cannot be sustained in law.

9. For the reasons given above, we set aside the impugned order dated 12.08.2025 with liberty to the respondent no.3-Executive Engineer, Electricity Urban Distribution Division-IV,

Madhyanchal Vidyut Vitran Nigam Limited, Bareilly to pass fresh order after following the due procedure as contemplated under Clause 5.6(e) of U.P. Electricity Supply Code, 2005 within a period of one month from the date of production of certified copy of this order.

10. However, it is expected that the petitioner shall cooperate with the respondents in inspecting the premises so that respondents may do necessary investigation and record the energy consumed in the check meter installed by the company.

11. Accordingly, the writ petition is ***allowed*** with no order as to costs.

**October 15,
2025**

Sattiyarth

(Sudhanshu Chauhan,J.) (Saral Srivastava,J.)